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25STCV18416 Alfa Prosmarttech PTE, LTD, et al. v. Izrailbekova,
et al.

Tuesday, September
15, 2026

[TENTATIVE] ORDER SUSTAINING IN PART DEFENDANTS, ALEXSANDER SEMERDGHIAN'S
AND GALINA IZRAILBEKOVA'S, DEMURRER TO SECOND AMENDED COMPLAINT (9404)

I. BACKGROUND

The
second amended complaint ("SAC") seeks recovery of more than \$9 million dollars
in funds allegedly stolen by Nigina Izrailbekova ("Izrailbekova"), from the
five corporate entities ("Plaintiffs") she was employed to serve. Plaintiffs
allege seven causes of action for breach of contract, misrepresentation,
conversion, and other claims arising from these alleged facts.

The
SAC alleges that Defendant Aleksander Semerdghian ("Semerdghian"), Izrailbekova's
husband, misappropriated the money from Plaintiffs' accounts and moved the
funds to accounts Defendants owned and controlled. Plaintiffs allege that Defendant, Galina Izrailbekova
("Galina") Izrailbekova's mother, made false claims to conceal the theft and to
delay Plaintiffs from discovering the full extent of Izrailbekova's misconduct.

Defendants
demur to all seven causes of action as specifically discussed below.

II. LEGAL STANDARDS

A demurrer tests the sufficiency of a

complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the

complaint's sufficiency, the court must assume the truth of the properly pleaded factual allegations as well as facts that can be reasonably inferred from those expressly pleaded facts. The court may also consider matters properly subject to judicial notice. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The court may not consider contentions,

deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.4th 634, 638.) Plaintiff is required to allege facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000)

81 Cal.App.4th 39, 43.) Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. Code Civ. Proc., § 430.10(e); (Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1126.)

Sufficient facts are the essential facts

of the case stated, "with reasonable precision and with particularity that is sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.)

Whether the Plaintiff will be able to prove the pleaded facts is irrelevant. (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609–610.)

A demurrer may be sustained if a complaint

is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing, vague, or ambiguous that they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2; Code Civ. Proc., § 430.10(f).)

III. DISCUSSION

A. Plaintiffs' capacity to sue. SUSTAINED.

Defendants

argue that Plaintiffs Alfa Prosmarttech PTE, Ltd., Martorell S.R.O., and Suntronix PTE, Ltd. lack capacity to maintain this action because they are foreign corporations transacting intrastate business in California without having complied with Corporations Code section 2203. The SAC alleges that, "[t]o the extent any Plaintiff is deemed to transact intrastate business in

California within the meaning of California Corporations Code §§ 191 and 2105, such Plaintiff has complied, or will comply, with all requirements of Corporations Code § 2203 to maintain this action.” (SAC ¶ 17.)

The

Court has already addressed the asserted capacity defect. Defendant Nigina Izrailbekova raised the same issue as to the same three Plaintiffs in her prior demurrer to the SAC. On August 4, 2026, the Court sustained the demurrer only as to the capacity of Alfa, Martorell, and Suntronix and ordered those Plaintiffs to file the necessary receipts establishing compliance with Corporations Code section 2203 by September 15, 2026. (M.O. 8/4/26.) The present demurrer therefore raises the same asserted disability that is already the subject of the Court’s September 15, 2026 Order to Show Cause.

A

foreign corporation need not qualify in California to commence an action. Rather, where Corporations Code section 2203 applies, the corporation may not maintain the action until it satisfies the statutory requirements. (United Medical Management Ltd. v. Gatto (1996) 49 Cal.App.4th 1732, 1739.) The resulting disability is ordinarily addressed by abating the action to permit compliance. (Id. at p. 1740 [“Ordinarily, the matter should be stayed to permit the foreign corporation to comply. If the foreign corporation plaintiff complies with section 2203, subdivision (c), by qualifying and paying fees, penalties and taxes, it may maintain the action. If the foreign corporation fails to comply, the matter should be dismissed without prejudice.”].

Plaintiffs

have now filed a response to the Court’s August 4, 2026, order describing their efforts toward compliance. Plaintiffs report that they obtained current home-jurisdiction documentation for all three corporations: certificates issued by the Singapore Accounting and Corporate Regulatory Authority on August 28, 2026, identifying Alfa and Suntronix as live companies, and an August 26, 2026 extract from the Slovak commercial register for Martorell. Plaintiffs acknowledge, however, that no Statement and Designation by Foreign Corporation has yet been filed in California for any of the three corporations.

Plaintiffs

further represent that Alfa faces an additional obstacle because its corporate name is already registered in California. According to Plaintiffs, Defendant Nigina Izrailbekova caused a California corporation bearing the name “Alfa

Prosmarttech PTE. LTD.” to be formed in January 2025 without Alfa’s knowledge or authorization. Plaintiffs contend that Alfa therefore must either obtain relief concerning the conflicting name or qualify under an alternate name pursuant to Corporations Code section 2106. The Secretary of State record submitted with Plaintiffs’ response reflects that an entity named “ALFA PROSMARTTECH PTE LTD” was incorporated in California on January 16, 2025, with Nigina Izrailbekova identified as the incorporator and agent for service of process.

Finally,
Plaintiffs have not yet determined whether Alfa, Martorell, or Suntronix owes California franchise taxes for any period relevant to section 2203(c). Counsel represents that California tax counsel has been identified, and an engagement is being finalized, but that the necessary multi-year tax analysis cannot begin until after October 15, 2026. Plaintiffs propose thereafter to complete the required filings, pay the filing fees and \$250 statutory penalty for each entity, pay any taxes determined to be due, and report their compliance to the Court.

Accordingly,
the circumstances underlying the Court’s August 4 ruling have not materially changed. The demurrer based upon lack of capacity is therefore SUSTAINED as to Alfa, Martorell, and Suntronix. This ruling does not impose a separate or additional compliance requirement. The capacity defect is the same defect already subject to the Court’s August 4, 2026, order, and Plaintiffs’ efforts to cure it will continue to be addressed through the pending Order to Show Cause. Plaintiffs do not contend that the statutory cure is complete. Rather, they have presented evidence of steps undertaken toward compliance and request additional time to complete the process. They request a written status report by November 19, 2026, and continuation of the OSC to a date on or after February 8, 2027.

B. Second cause of action for Penal Code § 496 violation against Galina (mother). OVERRULED.

Penal Code § 496 criminalizes the buying or receiving of stolen property knowing it was stolen or obtained “in any manner constituting theft or extortion.” (Pen. Code, § 496.) “Theft” includes taking personal property “by any false or fraudulent representation or pretense.” (Pen. Code, § 484(a).)

Galina argues the second amended complaint does not allege that Galina received or obtained Plaintiffs' property or that Galina knew any money from Plaintiffs' bank accounts had been stolen. Defendant claims that heightened pleading is required.

The claim alleges that Semerdgian received, possessed, and controlled portions of the stolen funds that Izrailbekova transferred into separate accounts owned or under Semerdgian's control that Semerdgian knew had been stolen from Plaintiffs. (SAC ¶ 56.)

Plaintiffs allege that Defendant Galina aided in concealing and withholding the property by knowingly making false statements to Plaintiffs about Izrailbekova's interrogation by the FBI with the intent to deter Plaintiffs from continuing their investigation and discovering the disposition of their stolen property. (SAC ¶ 58.) Liability against Galina is based on a co-conspiracy in a common scheme to defraud Plaintiffs. (SAC ¶ 59.) That Galini allegedly made false statements about the FBI to deter Plaintiffs infers knowledge that the funds were wrongfully obtained.

C. Third and fourth causes of action for negligent misrepresentation and intentional misrepresentation, respectively, against Galina. **OVERRULED.**

A claim for fraud requires facts to support the following elements: (1) a misrepresentation, (2) made with knowledge of its falsity, (3) Defendant intended to defraud Plaintiff, i.e., induce Plaintiff's reliance, (4) Plaintiff justifiably relied on the misrepresentation, (5) causing damage. (Nagy v. Nagy (1989) 210 Cal.App.3d 1262, 1268.)

A claim for negligent misrepresentation differs only as to the second element, which requires proof that the defendants made the representation without reasonable ground for believing it to be true. (Ragland v. U.S. Bank National Assn. (2012) 209 Cal.App.4th 182, 196.)

Fraud claims are subject to strict requirements of particularity in pleading. (Id.) The particularity requirements necessitate pleading facts showing "how, when, where, to whom, and by what means the representations were tendered." (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.) The

requirement "applies not only to the alleged misrepresentation, but also to the elements of causation and damage." (*Moncada v. West Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 776.)

Where fraud is alleged against a corporation, the pleading standards are even greater. Plaintiff must allege "the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (*Lazar v. Superior Court* (1996) 12 Cal. 4th 631, 645.)

Galina argues that Plaintiffs should specifically identify, to whom Galina allegedly made a misrepresentation, when it was made, by what means it was made, what exactly was said, and what each Plaintiff did in reliance on it.

Plaintiffs allege that in or around August and September 2024, Izrailbekova made positive assertions of material fact including that Plaintiffs' respective U.S. bank accounts had been frozen or otherwise restricted by the banks. (SAC ¶64.) The statements were made with intent to induce Plaintiffs to rely on these statements, delay their inquiries, and prevent Plaintiffs from discovering her ongoing embezzlement. (SAC ¶ 64.) Galina, allegedly acting as Izrailbekova's agent, falsely told Plaintiffs that Izrailbekova had been confronted by the FBI and was instructed to cease all communications. These representations were not true, and Galina had no reasonable grounds for believing they were true. (SAC ¶ 65)

In reliance on those statements, Plaintiffs were induced to forbear from taking immediate action to investigate their accounts, to secure their funds, and to terminate Izrailbekova's access. This reliance was to Plaintiffs' detriment as the delay allowed Izrailbekova to continue misappropriating funds from the accounts. (SAC ¶ 67.) Plaintiffs lost funds of \$9,024,157.38 as a result of their reliance on Defendant's false statements. (SAC ¶ 67.)

Plaintiffs' arguments in opposition have merit. There are exceptions to the rule requiring specificity in pleading "which mitigate the rigor of the rule requiring specific pleading of fraud. Less specificity is required when 'it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy,' (*Bradley v. Hartford Acc. & Indem. Co.* (1973) 30 Cal.App.3d 818, 825 [106

Cal.Rptr. 718)); "[e]ven under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party ..." (Committee On Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 217.)

Plaintiffs allege that Galina initiated these false statements to Plaintiffs' principles by telephone and email, and therefore, the specifics lie more in Galina's knowledge than the Plaintiffs. (SAC ¶ 37, 65, 74.). Contrary to Defendant's reply, Plaintiffs specifically allege causation and damage, namely, that because of Plaintiffs' reliance on Galina's misrepresentations, Plaintiffs failed to take immediate action including terminating access to Plaintiffs' accounts and initiating a forensic investigation, such that Defendants were able to steal funds totaling \$9,024,157.38. (SAC ¶ 76-77.)

D.

Fifth

cause of action for conversion alleged against Galina. OVERRULED.

Defendant argues that Plaintiffs did not allege that Galina took or held any of Plaintiffs' funds, rather Israilbekova transferred Plaintiffs' funds to Sermedgian who received them. (SAC ¶ 81.) Plaintiffs concede this issue but argue that Galina participated in a conspiracy to embezzle and conceal the funds from Plaintiffs and that she assisted in the conversion by making false statements and fabricating an FBI story. (Opp. 10:3-7)

To prevail on a claim for conversion, Plaintiffs must establish their ownership interest at the time of the conversion and Defendants' wrongful act or dispossession of Plaintiffs' property rights. (Moore v. Regents of University of California (1990) 51 Cal.3d 120, 136.) The basic elements are (1) the plaintiff's ownership or right to possession of personal property; (2) the defendant's disposition of the property in a manner that is inconsistent with the plaintiff's property rights; and (3) resulting damages. (Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119.)

Galina's argument addresses whether she personally committed the underlying conversion but does not dispose of Plaintiffs' aiding-and-abetting theory. Plaintiffs allege that Nigina

wrongfully transferred and withheld specifically identifiable funds belonging to Plaintiffs and that Galina, with knowledge of the wrongful conduct, substantially assisted its continuation by falsely representing that Nigina had been confronted by the FBI and instructed to cease communicating with Plaintiffs. Plaintiffs further allege that the representation caused them to refrain from immediately investigating their accounts, securing their funds, and terminating Nigina's access, thereby permitting the misappropriation and concealment of their funds to continue.

Whether Galina ultimately possessed the requisite knowledge or whether her alleged conduct constituted substantial assistance presents factual questions not properly resolved on demurrer. At the pleading stage, the allegations are sufficient to state a claim based upon aiding and abetting conversion. The demurrer to the fifth cause of action is OVERRULED.

E.

Sixth

cause of action for breach of fiduciary duty against Galina and Semerdgian. OVERRULED.

Galina argues that Plaintiffs do not allege that Galina owed Plaintiffs a fiduciary duty; rather the alleged theory is based on conspiracy or aiding and abetting. Galina argues that she must have been capable of committing the target tort in order to support a conspiracy to breach fiduciary duty. Only Izrailbekova is alleged to have owed a fiduciary duty to Plaintiffs. (SAC ¶ 86.) Plaintiffs allege Semerdgian and Galina had knowledge of the fiduciary relationship between Izrailbekova and Plaintiffs and knowingly assisted in the breach by making false statements about the FBI to conceal the theft. (SAC ¶ 88.)

Defendant relies on *IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 652 for the proposition that Defendant "must be capable of committing the target tort", and since Plaintiffs do not allege Galina or Semerdgian owed Plaintiffs a fiduciary duty, they cannot be liable for conspiracy. (Dem 10:10-13.) Plaintiffs do not dispute this principle, that a conspiracy requires that the defendant be independently capable of committing the underlying tort. (Opp. 11:5-8.)

However, Plaintiffs argue that Defendants conflate the requirements for conspiracy with "aiding and abetting." The argument has

merit. Plaintiffs cite *Casey v. U.S. Bank Nat. Assn.* (2005) 127 Cal.App.4th 1138, 1145 which affirms that in a claim for "aiding and abetting" the substantial assistance element is satisfied if defendant "actually knew those transactions were assisting the customer in committing a specific tort." (Casey at 1145 fn. 2 ["under California law liability for aiding and abetting a tort differs fundamentally from liability based on conspiracy to commit a tort. For the reasons articulated so well in the Neilson opinion, we reject the banks' attempt to overlay the civil conspiracy "independent duty" requirement onto an aiding and abetting claim."].)

Defendants concede the issue in reply and argue the sixth cause of action survives as an aiding-and-abetting claim, but Plaintiffs did not adequately allege that claim. (Reply, 8:25-9:3.) A claim for aiding and abetting in an intentional tort requires that defendant "(a) knows the other's conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act or (b) gives substantial assistance to the other in accomplishing a tortious result and the person's own conduct, separately considered, constitutes a breach of duty to the third person." (*Saunders v. Superior Court* (1994) 27 Cal.App.4th 832, 846, 33 Cal.Rptr.2d 438; Rest.2d Torts, § 876.) Mere knowledge that a tort is being committed and the failure to prevent it does not constitute aiding and abetting." (*Fiol v. Doellstedt* (1996) 50 Cal.App.4th 1318, 1325–1326.)

The second amended complaint alleges that Semerdgian and Galina had actual knowledge of the fiduciary relationship between Izrailbekova and Plaintiffs and knowingly provided substantial assistance in Izrailbekova's breach of fiduciary duty when Galina made false statements to Plaintiffs to conceal the theft and Semerdgian received and controlled the stolen funds (SAC ¶ 88.) This claim is adequately alleged against both Defendants.

IV.

CONCLUSION

Based on the foregoing, demurrer to the second amended complaint is SUSTAINED as to Plaintiffs' capacity to maintain an action under Corp. Code, § 2203. Demurrer is OVERRULED in all other respects.